

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 3834

By: May and Pae of the House

and

Frix of the Senate

COMMITTEE SUBSTITUTE

An Act relating to ibogaine clinical trials; creating the Oklahoma Breakthrough Therapy Act; providing short title; defining terms; directing the State Department of Health to enter into certain contracts subject to specified conditions; establishing requirements for drug developers; providing contractual terms; providing for intellectual property rights; requiring submission of certain reports; creating the Ibogaine Development Revolving Fund; specifying type of fund and sources of monies; providing for budgeting and expenditure of monies for specified purpose; granting certain professional immunity to medical professionals; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-806.1 of Title 63, unless there is created a duplication in numbering, reads as follows:

1 This act shall be known and may be cited as the "Oklahoma
2 Breakthrough Therapy Act".

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 2-806.2 of Title 63, unless
5 there is created a duplication in numbering, reads as follows:

6 As used in this act:

7 1. "Department" means the State Department of Health;

8 2. "Drug developer" means a public-private partnership, for-
9 profit, nonprofit, or public benefits corporation engaged in drug
10 development and manufacturing that has established an ibogaine drug
11 development agreement with at least one additional state with a plan
12 to conduct drug development clinical trials to obtain United States
13 Food and Drug Administration approval for the use of ibogaine; and

14 3. "Ibogaine" means ibogaine and ibogaine-based therapeutics,
15 including ibogaine analogs.

16 SECTION 3. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 2-806.3 of Title 63, unless
18 there is created a duplication in numbering, reads as follows:

19 A. The State Department of Health shall, subject to the
20 availability of funds and in accordance with the provisions of this
21 act, contract with a drug developer to support multistate drug
22 development clinical trials to obtain United States Food and Drug
23 Administration approval for the use of ibogaine.

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1 B. Before the State Department of Health may contract with the
2 drug developer, the drug developer shall provide to the Department:

3 1. A detailed description of the drug developer's strategy for
4 obtaining approval for ibogaine from the United States Food and Drug
5 Administration through sanctioned drug development clinical trials,
6 including a detailed clinical trial design, a description of the
7 composition of the consortium's drug development clinical trial team
8 and the expertise of the team members, its plan to submit an
9 investigational new drug application, if it has not already done so,
10 and to seek a breakthrough therapy designation under 21 U.S.C.,
11 Section 356 to expedite the trials;

12 2. Protocols for clinical trial participant recruitment,
13 patient screening criteria administration, aftercare, and post-acute
14 treatment support;

15 3. Certification of an existing ibogaine drug development
16 agreement with one or more other states or state-sponsored
17 consortia; and

18 4. Financial disclosures sufficient to verify the drug
19 developer is prepared to meet its full obligations under this
20 section.

21 C. Before the Department may contract with the drug developer,
22 the Department shall negotiate a contract requiring the drug
23 developer to substantially agree to the following:
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1 1. To match the state's investment in drug development clinical
2 trials with ibogaine with an equal amount of additional funding and
3 to devote this total amount to drug development clinical trials
4 conducted within this state. These trials shall, to the maximum
5 extent possible, use in-state clinicians, facilities, and study
6 participants;

7 2. To provide reporting as specified under Section 4 of this
8 act;

9 3. To establish a plan to ensure broad and accessible ibogaine
10 treatment access to patients within the state following approval of
11 ibogaine by the United States Food and Drug Administration by
12 diverse means including, but not limited to:

13 a. providing priority access to ibogaine treatment to
14 residents of the state,

15 b. seeking third-party payor approval for ibogaine
16 treatment within the state,

17 c. developing means of access to ibogaine treatment
18 within the state for uninsured and low-income
19 individuals, and

20 d. training and credentialing medical providers within
21 the state to administer ibogaine treatment; and

22 4. To provide a plan to recognize the state's economic interest
23 in the intellectual property generated over the course of the
24 multistate drug development clinical trials with ibogaine,

1 consisting of the share of the proceeds from such intellectual
2 property that is proportional to the state's contribution to the
3 total cost of the multistate drug development trials, and to remit
4 the state's share of those proceeds to the Department at agreed-upon
5 intervals during the period for which the drug development clinical
6 trials are funded and during any following period of
7 commercialization. The Department shall deposit all remitted
8 proceeds in the Ibogaine Development Revolving Fund created in
9 Section 5 of this act.

10 D. In negotiating a contract with the drug developer, the
11 Department may agree to additional terms and make reasonable
12 deviations from the requirements of this section if the resulting
13 contract is fair and creates at least substantially equivalent value
14 for the state.

15 E. For purposes of this section, intellectual property rights
16 and other economic rights accruing to the State of Oklahoma arising
17 from multistate drug development clinical trials with ibogaine shall
18 include any and all of the following as related to these trials:

- 19 1. Intellectual property, technology, and inventions;
- 20 2. Patents, trademarks, and licenses;
- 21 3. Proprietary and confidential information;
- 22 4. Trade secrets, data, and databases;
- 23 5. Tools, methods, and processes;
- 24 6. Treatment models or techniques;

1 7. Administration protocols; and

2 8. Works of authorship.

3 SECTION 4. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 2-806.4 of Title 63, unless
5 there is created a duplication in numbering, reads as follows:

6 A. The drug developer shall quarterly prepare and
7 electronically submit to the State Department of Health:

8 1. A report on the progress of the multistate drug development
9 clinical trials with ibogaine conducted pursuant to this act; and

10 2. A financial status report, including information to verify
11 expenditures of state funds and required matching funds.

12 B. The Department shall electronically submit a report to the
13 Governor, the President Pro Tempore of the Senate, and the Speaker
14 of the House of Representatives on the progress of the drug
15 development clinical trials and its related financial status by
16 December 1 of each year until the clinical trials are concluded.

17 SECTION 5. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 2-806.5 of Title 63, unless
19 there is created a duplication in numbering, reads as follows:

20 There is hereby created in the State Treasury a revolving fund
21 for the State Department of Health to be designated the "Ibogaine
22 Development Revolving Fund". The fund shall be a continuing fund,
23 not subject to fiscal year limitations, and shall consist of all
24 monies received by the Department from:

1 1. Remittance of the state share of proceeds from intellectual
2 property generated over the course of the multistate drug
3 development clinical trials as provided in paragraph 4 of subsection
4 C of Section 3 of this act; and

5 2. Any other source when provided for the purpose described in
6 this section including, but not limited to:

- 7 a. legislative appropriations,
- 8 b. private gifts and donations, and
- 9 c. public and private grants.

10 All monies accruing to the credit of the fund are hereby
11 appropriated and may be budgeted and expended by the Department for
12 the purpose of supporting programs or research benefiting at-risk
13 populations that suffer from conditions treatable with ibogaine
14 including, but not limited to, traumatic brain injury, opioid use
15 disorder, co-occurring substance use disorder, and other
16 neurological or mental health disorders. Expenditures from the fund
17 shall be made upon warrants issued by the State Treasurer against
18 claims filed as prescribed by law with the Director of the Office of
19 Management and Enterprise Services for approval and payment.

20 SECTION 6. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 2-806.6 of Title 63, unless
22 there is created a duplication in numbering, reads as follows:
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1 Medical professionals licensed by the State of Oklahoma shall
2 not be subject to professional disciplinary action solely for
3 recommending participation in clinical trials of ibogaine.

4 SECTION 7. This act shall become effective November 1, 2026.

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